

BEFORE THE FEDERAL MARITIME COMMISSION

MCS INDUSTRIES, INC.,
Complainant

v.

COSCO SHIPPING LINES CO., LTD. AND
MSC MEDITERRANEAN SHIPPING COMPANY S.A.,
Respondents.

DOCKET NO. 21-05

**NOTICE OF DETERMINATION OF THE SWISS FEDERAL OFFICE OF JUSTICE
THAT THE PROCEDURES OF THE HAGUE EVIDENCE CONVENTION
APPLY TO THIS PROCEEDING AND MUST BE USED**

In its continuing efforts to address the Swiss law impediments to providing additional discovery in this proceeding, Respondent MSC Mediterranean Shipping Company SA (“MSC”) has requested that the Swiss Federal Department of Justice and Police (FDJP) authorize MSC to proceed to comply with Your Honor’s order to compel discovery notwithstanding the provisions of Swiss law blocking the discovery. This is essentially a request to waive enforcement of Article 271 of the Criminal Code. The Federal Office of Justice in Bern (“FOJ”) prepares for the FDJP decisions on authorizations to comply with a foreign order. The FOJ has responded that the requested “authorization under Article 271 of the Criminal Code cannot be granted in view of the fact that mutual legal assistance route is open.” The FOJ explains that providing discovery pursuant to the order is “an act of taking of evidence in a civil and commercial matter ” and “must therefore be made in accordance with the rules of the 1970 Hague Convention.” A copy of the FOJ’s notification of its determination on the matter is attached, stating further that a formal decision confirming this determination will be issued in the near future.

The FOJ's decision means that the only path open to MSC to provide additional discovery under the order in compliance with Swiss law is the resubmission of Letters of Request under the Hague procedures. The FOJ further confirms that the Hague procedures do apply to this proceeding. As MSC has consistently maintained, the decision of the Geneva Court of First Instance to the contrary was based on a misunderstanding of the nature of private reparations proceedings before the Commission. Finally, the FOJ determination confirms that Section 271 of the Criminal Code remains applicable and has not been waived.

MSC will provide a copy of the FDJP's formal decision immediately upon its receipt. MSC respectfully submits that the FOJ's opinion further supports MSC's position that the proper way forward in this proceeding is further assistance and government to government consultations as necessary under the Hague procedures. The *Order to Show Cause* noted that prior "'advice' from the Federal Office of Justice in Switzerland merely identifies the process for resubmitting a request and the factors that may be taken into account, without any discussion of the merits of this proceeding," *Order* at 2, but the FOJ's determination on the authorization request is clear and authoritative that the Hague procedures do apply here and must be followed. The FOJ's determination is also authoritative that MSC has no lawful authority within the meaning of Article 271 to provide compelled discovery outside the Hague Convention procedures.

Respectfully submitted,

/s/ John Longstreth

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Counsel for Respondent
MSC Mediterranean Shipping Company S.A.

Dated: October 18, 2022

Request of MSC and of the Response of the Swiss Federal Office of Justice
[email addresses redacted]

From: Mayer Thomas BJ
Sent: Monday, October 17, 2022 2:34 PM
To: Burrus Louis
Cc: Marchettini Giulia; Taillard Célien
Subject: AW: MSC Mediterranean Shipping Company SA [SWLE.F3dz]

Cher Monsieur,

Je peux vous confirmer qu'à notre avis, il s'agit en l'occurrence d'un acte d'obtention de preuves dans une affaire civile et commerciale. La demande concernant la production de documents par MSC doit donc être effectuée selon les règles de la Convention de La Haye de 1970. Une autorisation au titre de l'article 271 CP ne peut pas être accordée compte tenu de la voie ouverte à l'entraide judiciaire.

Conformément à votre demande, nous sommes en train de préparer une décision correspondante pour notre cheffe de département.

Meilleures salutations,

Thomas M. Mayer
Docteur en droit, avocat

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Von: Burrus Louis
Gesendet: Montag, 10. Oktober 2022 22:32
An: Mayer Thomas BJ
Cc: Marchettini Giulia; Taillard Célien
Betreff: MSC Mediterranean Shipping Company SA [SWLE.F3dz]

Cher Monsieur,

Je fais suite notre aimable entretien téléphonique du 16 septembre dernier, qui avait pour objet la situation complexe dans laquelle se trouve ma mandante, MSC Mediterranean Shipping Company SA ("MSC").

Comme évoqué lors de notre conversation, ma mandante, qui se voit aujourd'hui sommée par une autorité judiciaire américaine de produire des documents qu'elle détient sur territoire suisse, s'efforce de résoudre la situation de blocage dans laquelle elle a été placée par la décision du Tribunal de première instance (TPI) de Genève, qui a rejeté la demande d'entraide formulée par dite autorité.

Dans ce but, dès lors qu'il apparaît clair que les voies de l'entraide en matière civile et commerciale sont, nonobstant la décision du TPI, bel et bien ouvertes, ma mandante n'a d'autre choix que de tenter de démontrer à la juridiction américaine compétente qu'une nouvelle demande d'entraide doit être déposée.

C'est dans ce contexte que ma mandante sollicite, par courrier de ce jour à Madame la Conseillère fédérale Karin Keller-Sutter (*en pièce jointe*), une décision sur une requête d'autorisation au sens de l'art. 271 CP auprès du DFJP. Parallèlement à cette requête – et comme discuté lors de notre entretien – MSC se permet de solliciter par la présente un avis préalable de l'OFJ par retour d'email sur la possibilité de délivrer une autorisation dans le cas d'espèce (et sur la pratique du DFJP de refuser les autorisations lorsque la voie de l'entraide est ouverte).

Je reste à votre disposition pour toute question. En vous remerciant par avance de la suite que vous voudrez bien donner à la présente, je vous prie d'agréer, cher Monsieur, l'expression de mes sentiments distingués.

Louis Burrus

Louis Burrus

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This e-mail and any attachments are confidential and may be legally privileged. If you are not the intended recipient, please notify the sender immediately and destroy all copies. Thank you.

Free translation of MSC's Request and the Response of the Swiss Federal Office of Justice
[email addresses redacted]

From: Mayer Thomas BJ
Sent: Monday, October 17, 2022 2:34 PM
To: Burrus Louis
Cc: Marchettini Giulia; Taillard Célien
Subject: AW: MSC Mediterranean Shipping Company SA [SWLE.F3dz]

Dear Sir,

I can confirm that, in our opinion, this is an act of taking of evidence in a civil and commercial matter. The request for MSC to produce documents must therefore be made in accordance with the rules of the 1970 Hague Convention. An authorization under Article 271 of the Criminal Code cannot be granted in view of the fact that mutual legal assistance route is open.

In response to your request, we are preparing a corresponding decision for our Head of Department.

Best regards,

Thomas M. Mayer

Von: Burrus Louis
Gesendet: Montag, 10. Oktober 2022 22:32
An: Mayer Thomas BJ
Cc: Marchettini Giulia; Taillard Célien
Betreff: MSC Mediterranean Shipping Company SA [SWLE.F3dz]

Dear Sir,

I am following up on our telephone conversation of 16 September, which concerned the complex situation which my principal, MSC Mediterranean Shipping Company SA ("MSC"), is currently facing.

As mentioned during our conversation, my client, who is now being summoned by an American legal authority to produce documents that it holds on Swiss territory, is trying to resolve the deadlock in which it has been placed by the decision of the Court of First Instance (CFI) of Geneva, which rejected the request for mutual assistance submitted by said authority.

To this end, since it is clear that the channels for mutual assistance in civil and commercial matters are, notwithstanding the decision of the CFI, open, my client has no choice but to try to establish before the competent American authority that a new request for mutual assistance must be filed.

In this context, my client is requesting a decision on a request for authorization under Article 271 of the Swiss Criminal Code from the Federal Department of Justice and Police (FDJP) in a letter to Federal Councilor Karin Keller-Sutter addressed to her today (*see document attached*). In parallel to this request - and as discussed during our call - MSC is seeking a preliminary opinion from the FOJ by return email on the possibility of issuing an authorization in the present case (and on the practice of the FDJP of refusing authorizations when the mutual assistance procedure is open).

I remain at your disposal for any questions. Thank you in advance for your consideration of this matter.

Sincerely,

Louis Burrus

CERTIFICATE OF SERVICE

I certify that, on October 18, 2022, a true and current copy of the foregoing Notice was served via electronic mail on the following:

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/s/ John Longstreth